

THE NET—A China Seas Mystery, by H. Bedford-Jones

Short Stories

Twice A Month

25 Cts

MAY 10th

30c. in
Canada

Trouble, and the Double Cross Brand
THE GUN FIGHTERS

by
**George C.
Henderson**

KLONDIKE STAKES
James B. Hendryx

**A
MUNICIPAL FEUD**
Ernest Haycox



THE NET—A China Seas Mystery, by H. Bedford-Jones

Short Stories

Twice A Month

25 Cts

MAY 10th

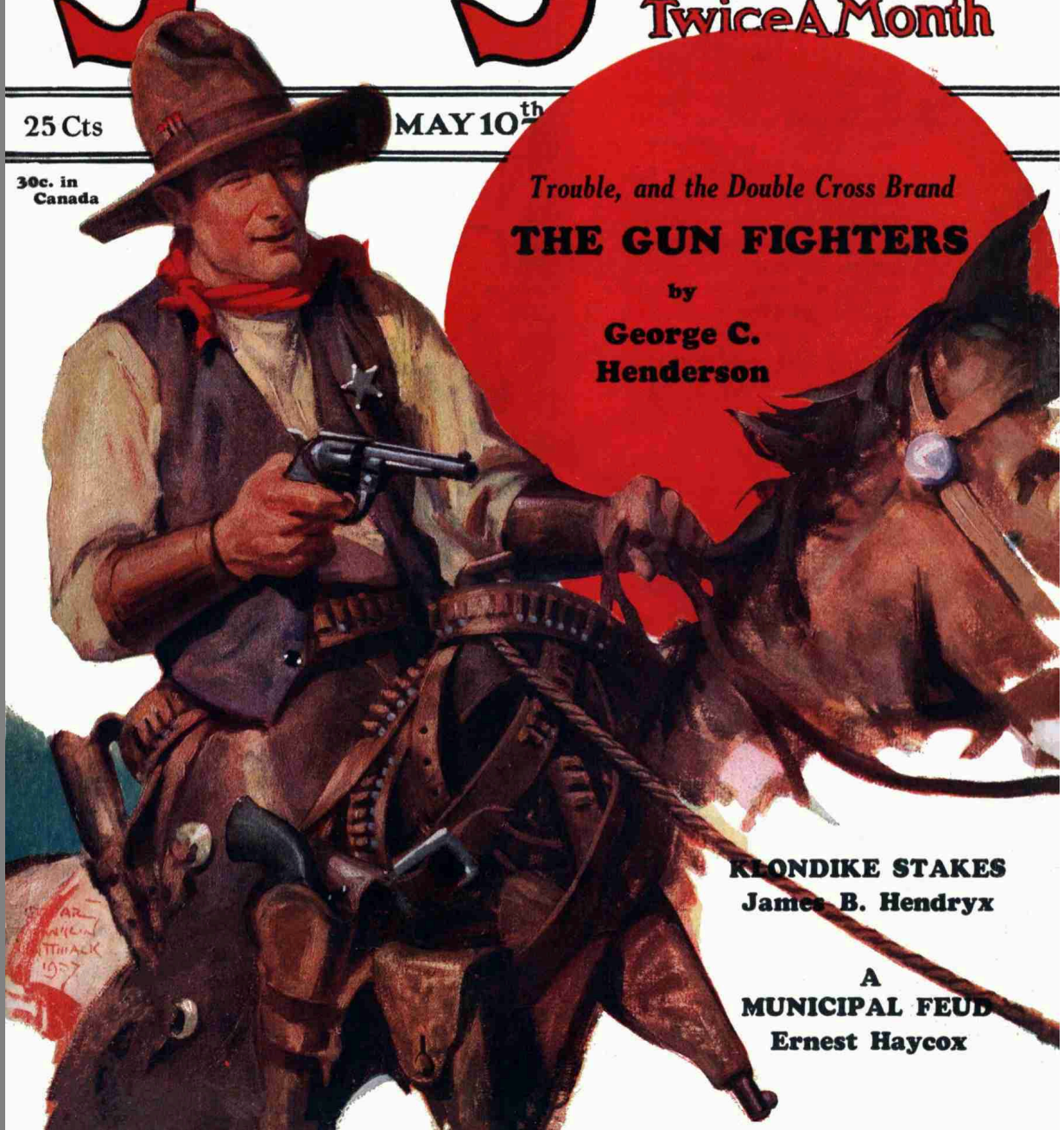
30c. in
Canada

Trouble, and the Double Cross Brand
THE GUN FIGHTERS

by
**George C.
Henderson**

KLONDIKE STAKES
James B. Hendryx

**A
MUNICIPAL FEUD**
Ernest Haycox



The Project Gutenberg eBook of A municipal feud

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: A municipal feud

Author: Ernest Haycox

Release date: March 2, 2026 [eBook #78086]

Language: English

Original publication: New York: Doubleday, Doran & Company, Inc., 1928

Other information and formats: www.gutenberg.org/ebooks/78086

Credits: Prepared by volunteers at BookCove (bookcove.net)

*** START OF THE PROJECT GUTENBERG EBOOK A MUNICIPAL
FEUD ***



A MUNICIPAL FEUD

By ERNEST HAYCOX

Author of "Bound South," "Starlight and Gunflame" etc.

WHEN ONE DESCRIBES A DESERT TOWN TO ITS ENTHUSIASTIC INHABITANTS AS A "SHRIVELLED UP GOPHER HOLE," PERHAPS IT IS JUST AS WELL TO PUT YOURSELF RIGHT WITH THEM LATER ON BY STAYING FOR THEIR FIGHT WITH THE RIVAL METROPOLIS, WHICH, IT WAS FELT, WOULD STEAL ANYTHING THAT WASN'T RIVETED TO THE LANDSCAPE. BUT WHEN STEPS COME TO BE TAKEN FOR CIVIC HARMONY, THEN'S THE TIME TROUBLE IS HELL-BENT AROUND THE CORNER—SO TWO WELL-TRIED PARTNERS DRIFTED SOUTH

Joe Breedlove and his newly-found partner, Indigo Bowers, halted on the ridge to survey the country below and beyond them. The chariot of dawn thundered out of the east and every peak and bluff stood in clear outline, flaming with the careless interweaving of the raw primary colors; silver sparkled along the creek bottoms, scarlet and chrome ran side by side on the butte faces. Away in the remote distance a bright blue sky fused with the earth's dun margin. It was like a bird's-eye map splashed with pigment and Joe's eyes kindled at the sight of so much prodigal beauty.

"Providence rises, and the earth is filled with light," he murmured, rolling a brown paper cigarette.

"It just looks like another hot day to me," grumbled Indigo Bowers. Indigo was a thin, undersized bundle of nerves. Upon his wizened face—where little wrinkling crow's feet loved to dwell—was an abiding distrust

of the world as he found it. His past life was a page written with the red ink of battle, feud and sudden violence, for Indigo was constitutionally unable to keep out of a quarrel, whether of his own making or somebody else's.

"Take the beam out o' yore eye, Indigo," said Joe, smiling. No man on earth could withstand that smile; it was the shrewd, tolerant smile of a man who very well knew how devious were the ways of a wicked world and yet would not let that knowledge sour him. Joe Breedlove was tall and lean and as bronzed as the cigarette papers which came attached to his sack of smokin' tobacco. The hair showing beneath his Stetson was prematurely silvered, his eyes were quite blue and mirroring an easygoing philosophy of existence.

"I ain't got nothin' in my eyes but sand an' gravel," retorted Indigo, "and I've swallered enough alkali water to corrode a boiler."

They were a strangely mated pair and the wonder of all wonders was that they managed to endure each other. Joe Breedlove had met Indigo a month back on the trail when Indigo was in one of his characteristic difficulties—being chased by a posse. Joe had helped him out of it and a little later had in turn been given an assisting hand by Indigo. After that some chemical affinity had drawn them together. And for a month they had ridden southward, bound nowhere in particular, with nothing much in their minds.

Joe Breedlove stretched a long arm to the southeast. "Over yonder is a town. I was raised in it. There's a piece of business I've got to finish up. Let's ride."

"Wait a minute," said Indigo. "What town is it?"

"Big Elk."

Indigo shook his head decisively. "I can't go there."

"Why not?" asked Joe.

"I was there once," explained Indigo, and for some reason he felt called upon to draw his pointed features into a poker expression. He saw Joe grinning at him and he flared up. "Laugh, you idiot! You know blamed well I'm a peaceful man. I nev' do butt my head into trouble unless I'm invited. But it is shorely funny how folks pick on me."

“Well, that makes the fifth town hand-runnin’ we’ve had to circle because you’d been in ’em before,” mused Joe Breedlove. “If this keeps up we’ll have to go east o’ the Mississippi. It’s a mercy how you can develop friction in these municipal corporations. They see you an’ they start shootin’.”

“I’m not a hand to be picked on,” started Indigo with dignity.

“Guess we’ve got to separate for a couple days, then,” decided Joe. “I’ve got a chore to finish in Big Elk. Supposin’ I meet you here two sleeps from now?”

“If it’s a fight you aim to finish,” began Indigo wistfully, “I wouldn’t mind travellin’ along with you——”

“No, it’s peaceful.”

“All right, then,” decided Indigo. “Two sleeps from now, at this very spot. I’ll mosey around somewhere and fill up on ham an’ eggs.”

Joe Breedlove turned down the ridge side. “Try to keep out of trouble, Indigo.”

“I won’t start nothin’,” promised Indigo. “But I won’t avoid nothin’, either.”

The last part of the sentence was mumbled to Indigo’s own self. He watched Joe descend the slope and thread a patch of pines; then he turned toward the east and began a day’s wandering across a series of blistering hot upland pastures. At noon he stopped to eat a cold snack and inhale a brown paper cigarette, feeling somewhat bereaved. After this, he forged on, his horse casting longer shadows to the fore. And in that gloaming hour betwixt sunset and dark he sighted the scattered lights of a town bearing a little to his starboard quarter. He tacked and drifted down upon a street-end, stopping in the shadows. There was something Napoleonic in the manner he sat on his horse and memorized the relative positions of the livery stable, the hotel, the restaurant and the saloon—as well as the second-story porches and those little niches of darkness wherein a man might find shelter in time of stress.

“Well,” said he, advancing on the restaurant, “mebbe nothin’ will happen.”

He posted his horse and went inside, ordering a goodly portion of those comestibles which had haunted his imagination during the past month of wandering. He also ordered a brace of eggs—but he didn't eat them. He merely summoned them out of the kitchen so that he might not forget what eggs looked like. The rest of the meal vanished and was duly paid for, though Indigo never got so engrossed in his feeding as not to observe certain other patrons closely examining him. It was not a new experience to Indigo; he stared grimly at the bottom of his coffee cup and reminded himself that Joe had bade him be peaceful. Having polished off a second mug of coffee, he repaired to the sidewalk and aimed his footsteps toward the mellow lights of the saloon.

"It don't tickle my humor none to be gawped at," he grumbled.

"Just a minute, brother."

He had arrived in front of the saloon. A pair of fellows slipped through the shadows, flanking him. He saw others standing on the porch, watching this move.

"Step inside a minute. We'd like to pass a few words."

"My time is my own," stated Indigo, with commendable restraint. "If you got anything on yore chest, boost it off."

"Step inside."

"Why should I?"

"Why shouldn't yuh?" Something unmistakably metallic kissed Indigo's backbone. Always recognizing the moral force of the drop, Indigo stoked his temper with a few inflammable thoughts and passed into the hotel room, to be quickly surrounded by a small crowd. One particular individual with General Grant whiskers and a pair of gimlet eyes addressed him bluntly. "Where you from?"

This sort of thing touched Indigo to the quick. "You kinda annoy me," said he. "Yore eyes interfere and yore nose is too short to reach into my business. Back up."

The self-elected spokesman worked his jaws for a moment and looked significantly about. "It won't help you none to stir up the vinegar," he warned Indigo. "I'm askin' you once more—where you from?"

Indigo cocked his head at an angle and began nodding it from side to side as the words poured out of him. "Listen, Albert, I've rode into better towns than this, but I don't recollect havin' entered any worser ones. You gents think yore pretty smart, picking on a stranger thisaway. Jus' let me assert yore tamperin' with high explosives. I'll pull this shebang to its rotten foundations an' let in a little air, which is some badly needed. You make me sick. What's the name of this shrivelled up gopher hole?"

"That's what I thought," boomed the inquisitor. "You got a lot of brass, comin' over here from Big Elk to spy us out! All right, boys, we'll hang a few signs on 'im and send 'im back with our compliments!"

"You shore will suffer from plague and sudden decimation if you do," stated Indigo severely. He saw that this agitated the crowd, which was curious, considering he had spoken only the literal truth. Civic pride was an unreasonable thing. "Just another imitation town," he continued. "I ain't from Big Elk if that will help you any. The farther south I rides the worse these corporate junk heaps get. What're you so daggone proud about? I don't see nothin' to stimulate me none."

The spokesman stepped forward, shaking his finger. "You'll be humble _____"

He was shoved aside by another man, who looked searchingly at Indigo. "Listen, ain't yore name Indigo Bowers?"

"Yeah," agreed Indigo sourly.

The new spokesman grinned. "Thought so. You was the fella that wrecked the Gloria saloon over at Big Elk, three years ago July."

"Well, they tried to pick on me," grumbled Indigo. "I ain't the kind to stand that."

The man turned to his partners. "We got him wrong. He ain't no Big Elk boy."

The atmosphere clarified instantly. Any man who had done property damage to Big Elk was among friends. They said as much; they shook his hand, they slapped him fraternally on the back. Indigo thawed, his volatile anger departed. "Well," said he, "Mebbe I was harsh. Jus' a mistake. I can

see yo're gentlemen o' parts. What's the name o' this thrivin', hospitable little city?"

"Jingle Bell."

"And I takes it Big Elk has done you injury? Mebbe you'd like to return the same? Uhuh, the story is familiar to me. I nev' took no stock in Big Elk myself." He veered toward the gimlet-eyed gentleman who hung aloof, nursing suspicion. "What's yore name, mister?"

"Gabe Wales. I ain't ashamed to announce my handle."

"Neither'm I," was Indigo's over-prompt answer. "Only, I'm modest."

Somebody discerned that the cordial atmosphere was about to be dissipated and stepped in to prevent it. "Let's all amble over to the Geyser an' gild the lily. Any man that can deflate a little hot air from that cross between a hog-waller and a rabbit hutch known as Big Elk is certainly deservin' of——"

The speech was neatly sheared in the middle by a high screech and the accent of a revolver shot. A cavalcade poured through the street, the furies broke loose; guns flamed, the hotel windows tinkled with breaking glass. To a man the cohorts of Jingle Bell rushed toward the exits of the hostelry and moved in the direction of the Geyser, which seemed to be the point of attack.

Indigo stood alone, greatly agitated with conflicting emotions. The sound of battle rang up and down the narrow thoroughfare, the smell of burnt powder was in the air. Indigo sniffed it and shook his head. It seemed a shame for him to be idle. "I'd ought to lend a hand. Still, nobody invited me."

There was a noise in the adjacent dining room and presently Gabe Wales crept out, a gun swinging from each fist. Yet though he was laden with the armaments of war, he seemed singularly lackluster. Indigo surveyed him up and down and with that glance had completely measured and docketed the man. "Wasn't you the fella who wanted to fight, a minute ago?"

"I'm protectin' the hotel," explained Wales taciturnly.

"It's yore hotel, huh?"

"I got an equity in it," was the morose rejoinder.

"You got an equity in a damsite hotter place, too," jeered Indigo, and forthwith ran from the hostelry. He had feared he was too late, but a glance

dispelled the notion. Down in front of the Geyser, men and horses were jammed in a whirlpool of conflict. Jets of light traced across the darkness; voices shrilled defiance and counter defiance. And from sundry rending, smashing sounds, it was plain that the Geyser was being competently wrecked. Half of the invading party was inside, the other half standing guard along the street, while the outraged citizenry of Jingle Bell sniped at them from all angles. Indigo added his falsetto crow to the confusion and looked about him with the air of a tactician. “Why stand in the street an’ get a lead irrigation?” he wanted to know. “These boys must be green.”

He came against four Jingle Bell men huddled in a patch of shadows, firing alternately. “Foller me,” said Indigo. “We’ll blast ’em. Come on.” He ducked along the street until he reached a rickety four-by-four pillar supporting one end of a second-story porch. Up this he shinned, with the Jingle Bell cohorts behind. “Now,” breathed Indigo, “fly at it.”

The entrance to the Geyser was across the street and a few doors westward. From the porch Indigo and his volunteers commanded a clear sweep of the indistinct horsemen. Methodically they went to work. This concentration of fire quite immediately disturbed the invaders; it likewise warned them that Jingle Bell was organizing its resistance. A yell called the wrecking party out of the saloon; they milled, throwing lead in all directions, and galloped into darkness. A last shot echoed from the open prairie and a last ribald yell ricocheted back. The men of Jingle Bell ventured into the Geyser. Indigo dropped from the porch and followed suit.



Indigo was not a hand much given to bothering about property values; he had broken many a plate mirror himself and scarred many a mahogany bar top. Nevertheless, the utter devastation wrought within the saloon absolutely shocked him. And while the crowd took nourishment, he stood gloomily aside and listened to the dictates of his conscience. It wasn't his fight, it wasn't his saloon—and it wasn't his town.

Still—— At that point Indigo's guardian angel turned a fresh page and reached for the red ink. He heard someone calling. Already his dash for the second-story porch had been heralded and the townsmen were regarding

him as if he had established himself as a definite personage. He moved up, drank, and continued to brood as the talk eddied over his head. There was a scuffle at the saloon door; in came a brace of men bearing a fellow somewhat wounded, yet still fighting back. The invading party had left at least one hostage.

“Throw him in the cooler,” said Indigo. Meanwhile, he had something else on his mind. “Where was those gents from, anyhow?”

“Oh, it’s the Big Elk bunch again. It’s allus the Big Elk bunch.”

“Well, I’ll be singed,” grunted Indigo. “How long’s this been goin’ on?”

“Blamed if I know. It was a habit when I come here ten years ago.”

“Think of that! An’ when was the last time you returned the visit?”

The crowd had closed around him. Someone else took up the story. “Well, Indigo, Big Elk’s sorter outgrown us. Las’ time we sashayed over there was two years back, an’ we like to got all killed. They’re twice our number.”

“Think of that!”

At this point there was a diversion. Through the door galloped Gabe Wales, bellowing like a bull. The guns still dangled in his fists, his gimlet eyes were aflame with mighty wrath. “Come on, boys, le’s go get ’im! Le’s wipe Big Elk offen the map!”

The proper response was lacking. The assembled force of Jingle Bell looked toward Indigo. Indigo twitched his nose at sight of Wales and spoke soothingly. “If here ain’t little Albert again.”

Wales turned on him furiously. “I’ll bet you know somethin’ about that bunch!”

“Listen, Albert, you got an awful habit of comin’ into the picture a little late. You was pickin’ yore teeth last I saw, and not very anxious to find trouble, either.”

“A dam’ spy!”

“Hush,” said Indigo. And, unaccountably, Gabe Wales hushed. Indigo’s eyes were a bright green and wrinkles splayed across his face. Thus for a moment he surveyed the gentleman, then swung and ignored him. He

addressed the crowd. "One thing's certain. They'll be back after the partner they left behind."

"Then," spoke up a bystander, "let's get busy to meet 'em."

"They won't come tonight," said Indigo. And the deliberateness of each word gave him immeasurable authority. "They've had ample for one night. Prob'ly they'll come tomorra."

"Then le's be ready to watch 'em arrive."

"There you go again," grunted Indigo. "The habit o' receivin' trouble has sorter grown on you. Look what they did! Why, it bruises a man's instincks. It shore does. It makes me so mad I could fry aigs on my bald spot! If they's got to be a lot of furniture busted, why not mosey over an' bust some o' their furniture for a change?"

Silence. Indigo shook his head. "Yore thinkin' they're too many. Shucks. I stood off that daggone town by myself once. Don't tell me you can't pulverize Big Elk." He waited for this to penetrate, seeing here and there a glimmer of heat. Of a sudden he struck the bar with his fist. "Tomorra I'd like fifteen men to ride out a ways with me. We'll set a deadline. When they try to cross it we'll give 'em an education in manners. I'm drinkin' with those fifteen. Who are the said gents?"

A yell went to the roof. Collectively, Jingle Bell moved toward the mahogany. Indigo nodded, noting from the corner of his eye that Gabe Wales alone stood back. He beckoned the man. "You—come here. Yore goin'. Oh, yes you are!"

Beyond noon of the following day, Jingle Bell men rode across the prairie; the distance to Big Elk was approximately twelve miles, the riding a piece of hot and sultry business. For part of the way it was a rolling land, then it fell into a series of pot holes and broken arroyos scattered with ancient rubble. To left and right were miniature bluffs! Indigo's attention was immediately drawn to them and he turned to a near man. "Henry, you strike off there an' see what's to be seen."

"It's all dum foolishness," grunted Gabe Wales. "They won't be comin'. And we can't go into Big Elk by daylight."

“Don’t worry none, Albert,” murmured Indigo. “I’ll satisfy yore cravin’ for lead candy.”

“My name,” snapped Gabe Wales, “ain’t Albert.”

“What an awful mistake yore mammy made.”

Henry, the flanker, was about five hundred yards removed when he wheeled and came racing back. Indigo stood in his saddle, to find dust kicking up along the western horizon; a compact body of horsemen advanced at the trot. Indigo pointed to a small depression directly ahead that would serve as a line of defense. “There’s our deadline. Now we’ll give these boys lessons in geography.”

The men of Jingle Bell raced for shelter, dropped to the ground and, at Indigo’s order, spread out. Big Elk’s partisans came forward at redoubled speed and Indigo’s green eyes flickered with a rare joy. “Now, take it easy. Aim low—we ain’t awful mad. Not yet. Let ’em see the dust kickin’ up. That provokes mature reflection.”

A burst of shots shattered the sultry silence of the prairie. Streamers of sand flicked across the earth, considerably short of the charging party. It didn’t hurt anybody, but Indigo saw them flinch. He warned his men a second time. “Keep it low. We don’t want blood, we want to educate ’em. Now—let ’em eat more gravel!”

The sputter of gunfire spread along the arroyo’s rim. This time the sand sprayed beneath the traveling hoofs; and then the Big Elk party swept down into a depression less than fifty yards removed. Dust billowed high, as if from ponies stopping on their haunches. Nor did Big Elk’s cavalry rise and come on. They had taken shelter. Stetsons bobbed up and down.

Indigo nodded to his companions. “Petey an’ Ort, snuggle up to yore rifles. Lay a little dirt down their necks.”

The two gentlemen designated went to work with pleasure and alacrity. Indigo saw a ruffle of dust rise beside an exposed Stetson; saw that Stetson drop like a plummet. “Not too close, Ort. Just sorter close.”

Indigo, however, forgot that he was as plain as any bull’s eye target. In a moment he toppled backward into the arroyo with his eyes full of sand and a weird string of words in his mouth. The Big Elk contingent had returned

compliments. Gabe Wales grinned surreptitiously, at which Indigo asked the man why he didn't go live in Big Elk if he liked those folks so well. Gabe muttered something that Indigo didn't hear. For the military chieftain of Jingle Bell saw a figure rise and drop away over to the south of both lines. It looked as if a flanking move was in progress. Crouching, Indigo raced along the arroyo, past his men, and a good hundred yards farther. The arroyo made a gradual turn, approaching nearer the depression in which the Big Elk party was stationed. Now and then Indigo hooked his chin over the parapet, at intervals catching sight of the Stetson still going south. Each time he ducked back and ran parallel, until the sound of firing grew fainter and he lost sight of his men. Coming to a shallow stretch, he discovered a convenient boulder ten yards removed and made for it on his stomach. The Stetson bobbed up again; Indigo put a shot over there and reached the rock's substantial shelter. A bullet promptly came back to him, as close as any bullet could reach without turning corners. Indigo swore mellifluously. "The gent means business. Oh well——"

He stuck out his hat, and immediately lost a piece of the brim. "I give him credit for good shootin'," was Indigo's wrathful observation. "But if he's pickin' on me——"

He was diverted by the sight of the Big Elk cavalcade spurring out of their stronghold, in full retreat. A few shots burst across the still air—then they were gone, with Indigo trying to count them and thus reassure himself no trickery was in the air. "I guess they got the lesson. Well, by golly!"

For no sooner had the representatives of Big Elk abandoned the scene, than the Jingle Bell party followed suit, riding with equal rapidity in the opposite direction. It looked to Indigo almost as if his companions had developed a chill. Such haste was unseemly, and he expressed himself to that effect. "Now it's a private argument. That gent is a persistent cuss. Why don't he go home?" Almost immediately Indigo conceived the idea of taking a roundabout pasear and catching his man by surprise. He retreated from the rock, crawled along the depression and traveled some fifty yards before sighting a cluster of rocks ahead. With commendable alacrity he made for this shelter. But when not quite ten yards away, the hungry aperture of a gun barrel popped into his face, grasped by a set of lean fingers. A Stetson rose

up, and Joe Breedlove's familiar features confronted him. "Well—uh——" wheezed Indigo.

Joe's face was coated with dust, it was Joe's fighting face, grim and flinty. But that expression remained but a moment. A light sparkled deep in the blue eyes and of a sudden Indigo felt extremely guilty. Joe always made him feel guilty in a situation like this.

"Picture of a man keepin' out of trouble," murmured Joe gravely.

Indigo defended himself hotly. "Don't look like yore doin' needlework, either. Did you happen to ventilate my sky piece?"

"I guess so. It must've been yore artillery that breezed me, likewise."

"Good gosh!" said Indigo, a trifle shaky. "Le's smoke."

They manufactured their cigarettes in complete silence. Joe was matchlessly serene; presently he began to smile. "Old Home week. I'll bet you organized this picnic, Indigo."

"Say, that was a fine ruckus you boys staged las' night in Jingle Bell!"

"Me?" countered Joe. "I wasn't there. I come over today with the bunch to see if I couldn't help rescue the lad lef' behind. Also to spread a little peace talk."

"Jingle Bell," maintained Indigo with dignity, "has suffered long enough. Why, that nice little town has been a vale o' tears goin' on twenty years now. All because o' Big Elk—" He bogged down there and had to lean on Joe for data. "Say, what caused this scrappin' in the first place?"

"Don't you know what yore fightin' for?" demanded Joe.

"Oh," said Indigo, waving an arm vaguely, "it looked 'sif they needed help."

"Listen," drawled Joe, grinding his cigarette into the earth. "Thirty years ago, Big Elk took the county seat away from Jingle Bell——"

"A blamed outrage!" broke in Indigo.

"—and the towns have been scrappin' ever since. But lately it'd have died down if certain parties hadn't sorter fed the flames to keep it goin'. Savee? Well, the sheriff is naturally a Big Elk gent. His life wouldn't be worth a plugged dime in Jingle Bell. So every time any son-of-a-gun wants to escape the wrath o' justice he hides out in Jingle Bell. These certain parties know that. They need this kind o' protection."

“What parties—what for?”

“Rustlin’,” murmured Joe. “They’s two jaspers at the top o’ the heap. One is a fella by name o’ Sweeny, from Big Elk. The other holes up at Jingle Bell. Monicker’s Gabe Wales.”

“That hop-toad!” snorted Indigo. “Allus shootin’ off his face about Big Elk.”

“Shore. Pays him to.”

Now Indigo was a forthright soul. Having once discovered an error in the universe, he was all for righting it. So naturally enough his first suggestion was for action. “Why not get these gents?”

“It would’ve been difficult—up to this mornin’,” answered Joe. “Only a few folks knew about it. I got good friends, which is how I knew. But this mornin’ Mister Sweeny made the mistake o’ venturin’ into Trent county an’ the sheriff nails him on an old charge. Before Sweeny dies he makes a complete statement of what it’s all about. Namin’ Gabe Wales. Of course, Jingle Bell wouldn’t believe the yarn if a Big Elk sheriff happened to tell it—so the Trent county sheriff is moseyin’ over to Jingle Bell to explain. Prob’ly there now.”

“So that caused all this ruckus,” murmured Indigo. “Well, it’s over now. I ain’t sorry. I’m sorter fatigued with fightin’.”

But Joe Breedlove was not finished. Whereas Indigo always wanted to wind up a matter as abruptly as possible, Joe loved to hemstitch a few artistic posies into human relations. Said he, “Yeah, it’s over. Now we’ll get both towns together at some place, have a banquet and formally bury the hatchet.”



Indigo looked coldly at his partner. “It won’t do. Nossir, it won’t do.”

“Why not?”

“I dunno why not,” said Indigo, not given to analysis. “But it won’t do.”

Joe, however, was set on his point. “It’ll be an experiment in the mutability o’ human nature.”

“I don’t reco’nize the word,” grumbled Indigo, “but it shore sounds harsh.”

Joe got up. “Of course, if you ain’t with me on the idea——”

“Who said I wasn’t with you?” barked Indigo—testily. “I only said it was an awful idee. If yore so daggone bound up in it, all right, I’m in. But you bet I’ll be ready to duck.”

They parted, each going to his horse and riding off. On the solitary trip to Jingle Bell, Indigo shook his head more than once. “Sometimes it seems to me Joe gets unnecessarily sentimental. It’ll be an awful bust.”

It was sunset when Indigo reached town. And before he could get off his horse, Petey and Ort came up to explain their retreat. “We figgered mebbe them Big Elk boys was tryin’ to run a whizzer on us. So we dusted for town. Didn’t know what had happened to you, anyhow. Say, heard the news? Gabe Wales is in jail, complicated with rustlin’.”

“Sad—very sad,” said Indigo, though he seemed to bear up well under the news.

“Sad?” snorted Petey. “Huh! You know what he an’ Sweeny of Big Elk was a-doin’? A-fomentin’ trouble between the two towns, so’s their crew o’ rustlers could have a safe harbor in time o’ trouble! Ain’t that sweet, now?”

Indigo nodded and went to the restaurant. After that he repaired to the saloon where a royal greeting awaited him. He took the acclaim with due modesty—tinged somewhat with gloom. For he heard the sacred precincts of the Geyser echo with sentiments hitherto alien. Men were discussing the town that for thirty odd years had been poison and plague to them; and they were admitting, with a magnanimous show of impartiality, that perhaps Jingle Bell had harbored unjust suspicions. The feeling seemed to be that although Big Elk had practically stolen the county seat and would likewise steal anything else that wasn’t riveted to the landscape, yet there might be a few decent people over thereabouts. Anyhow, this fighting business had gone on too long; it was time to quit—to live and let live. Thus the spirit of fraternal concord rose from the ashes and became a pale and fluttering ray, which in time and with careful nursing might actually generate heat and energy. Indigo shook his head. It looked as if a banquet was inevitable.

“It’ll be awful!” said he, to himself.

Big Elk’s formal invitation to the banquet reached Jingle Bell the next day, borne by Joe Breedlove and three others. An equal number of Jingle Bell dignitaries was hastily got together and the two parties convened at the Geyser where a judicious amount of liquid was imbibed to remove vocal impediments. Observations were made as to the weather and the state of the beef stock; after that Joe Breedlove, unmistakably the guiding spirit of his delegation, rehearsed a little past history and proposed the banquet. The Jingle Bell committee returned adequate compliments, promised to consider the matter and referred to that remark made by the governor of North Carolina to the governor of South Carolina. Immediately upon the departure of the Big Elk delegation a convention of the citizens was summoned.

There were certain benighted gentlemen who saw no good in the proposition, but the forces of progress gradually won. After all, it wouldn’t be seemly for Jingle Bell to back down from any proposition Big Elk made and the meeting got down to particulars. Obviously, the affair couldn’t be held in either town—that would give one party too great a bulge on the other. It was also suggested that the number of each side should be the same, to wit, fifteen. Phil Layton, a veteran of the country, set this number; and it is to be believed that he did so after calculating the number of good shots available.

That was the sense of the convention. In due time it was conveyed to Big Elk with congratulations, best regards, and all good wishes. Big Elk thereupon called another convention and discussed Jingle Bell’s amendments at ample length. Every comma, period and ink spot was scrutinized for possible double-meaning and guile. But no colored man was found in the woodpile. Presently it was decided that the Three Pines ranch-house would make a suitable point at which to hold the banquet, being situated midway between towns. It was further decided that if Jingle Bell was so suspicious as to limit the number, then fifteen tried and true stalwarts only should plant their boots under the table on each side. And this was transmitted back to Jingle Bell with felicitations, the greeting of the season, and happy sentiments.

Immediately Jingle Bell, in convention assembled, tore the latest proposals quite apart, suspected trickery but could not find it, and reluctantly assented; adding the further proviso that all guns should be checked outside the door and that there should be one extra man from each town to guard these weapons. Nor were there to be any other kind of death-dealing instruments to be carried inside the house. Pocket knives, it was agreed after considerable debate, would not be considered as weapons. At this point Indigo left the Geyser and studied the stars. "Civic harmony? It sounds like trouble hell-bent around the corner to me. Somebody's goin' to get shot yet."

After that a kind of grim silence settled over the county for thirty-six hours. On each side, fifteen men and a gun guard were chosen. Certain other arrangements, not exactly in the compact and somewhat shrouded by obscurity, were made. And at exactly seven o'clock, as twilight fell, the two parties met, dismounted together, gave up their guns together and passed inside the Three Pines ranch-house. Stoic gravity marbled each swart face; and the feast of amity began in silence, with potato soup. Indigo had chosen the seat nearest the door; but observing Joe Breedlove watching him from the remote end of the room, he sighed gently and moved on down until he was across from his partner. There was a hitch right at the beginning. It was discovered that an extra plate had been laid, on each side of the table. The assembled gentry of Jingle Bell looked gravely at the assembled Big Elk partisans. Joe Breedlove rose up and said, "I reckon they misjudged the number we wanted. Let it slide. No harm done."

But a Big Elk man murmured, "Jes' a minute," and went outside. A soft whistle cleft the darkness; the gentleman presently returned with a recruit who took the empty plate on Big Elk's side. At this Joe Breedlove frowned upon his own townsmen, but nobody returned his glance. A Jingle Bell cohort vanished into the shadows with equal promptitude and had the same measure of success in finding another man. A certain reserve contaminated the atmosphere, a certain regrettable chill came at each wary eye. Indigo drank his soup dourly. It may have been that there was an ironic flicker in his green orbs when he looked to his partner; it may have been that Joe

Breedlove dropped a lid in reply. At any rate the tall partner rose, his silver hair gleaming in the lamplight and a mellow smile on his bronzed and handsome face. The very sight of him there was enough to thaw the atmosphere; it was a rare time when Joe could not bend men with the charm of his genial assurance, the quizzical humor of his eyes. He looked from man to man and waved his arm across their heads as if in benediction.

“Boys,” said he, drawling each syllable, “it does me good to see this. They was some carping critics that maintained no good would ever come of it. They was some gents that misdoubted these two nice, upstandin’ little cities could ever meet in polite palaver. Those fellows had the beam in their eyes.” He looked cheerfully at Indigo and appeared not to see the leer of doubt upon his partner’s wizened features. “Yeah, the beam in their eyes. Now me, I’m a son of Big Elk. But I set a great store by the prosperity o’ the county. It has shorely grieved me two such fine cities couldn’t abide in peace an’ put the civic shoulders to the wheel o’ the progress. After all, it was the work of gents who wanted trouble for their own ends. It’s settled now. We want to bury the bone o’ contention so deep that old Nick’s own dog Nero won’t ever scratch it up. Now, I see a man over on the Jingle Bell side that I used to punch cows for. A square, upright gent who has always got a sensible word danglin’ on his tongue. Rise up, Phil Layton, an’ pour a little oil.”

The designated personage looked as if somebody had caught him in the act of stealing sheep. He said something like, “I’ll be gug-gug——” in a strangled voice. But the eyes of the multitude were upon him and so he stood up, a slab-sided fellow with a hatchet jaw and no amount of fraternal cheer on his leather jowls. He opened his mouth, closed it, picked a knife from the table and ran it across his coat sleeve. “Well, I dunno,” said he. “Mebbe we-all have been sorter careless. Not that I’m apologizin’ for Jingle Bell y’unnerstan’; ner condemnin’ Big Elk. Anybody’s apt to shoot off a few poisonous remarks. It’s possible both sides was rash. Seems to me the side which is biggest was the most rash—which might be natural. Of course all this how-do started thirty-one years ago, come July, when the county seat was boldly stole——”

At this point a remark seeped out of some gentleman on the Big Elk side. It had no precise meaning, but its intent was distinctly ribald, distinctly challenging. It sounded like “Rats,” though, of course, there were no rats in that room. A noticeable livening of interest passed along the festive board. Every man but one stopped eating, the exception being Indigo, who was doggedly determined to fill up before trouble started. Joe Breedlove hastily interposed. “You was sayin’, wasn’t you, Phil, that it was time we sh’d quit fightin’?”

Phil Layton grimly faced the serene Joe. “Yeh,” he grunted. “Them was my words—if I said ’em.”

This might have saved the evening and the general meeting of minds might have gone on undisturbed had not another skeptic on the Big Elk side muttered, “Huh!” in a very suspicious manner. Phil Layton swung angrily. “What was yuh gruntin’ about, yuh moon faced sheepeater?”

The Big Elk partisan was not reluctant about entering the parley. “I was wonderin’ how many extra men Jingle Bell has got hid over by the poplars.”

“Oh, is that bitin’ yuh?” snapped Layton. “Well, prob’ly we ain’t got half so many as you boys have cached out behind the barns.”

“Who said we had any fellows hidin’ behind the corrals?” countered the Big Elk gentleman. “It’s a dam’ lie. And even if it ain’t a lie, we knowed blamed well you fellas would try a stunt like that.”

“Like I was sayin’—” interposed Joe Breedlove; but the tide rushed in and bore him out of the scene. Indigo tilted his head toward the ceiling, appearing to see nothing, hear nothing. Yet he saw and heard everything; and his relaxed attitude was only a mask. He was ready to jump.

Phil Layton hammered the table, his words smacked the air resoundingly. “If they’s any rannies pulled around here it’ll be on the Big Elk side. Yuh couldn’t no more help bein’ crooked than a snake could help crawl. Yuh stole the county seat—yuh’d steal offen yore own grand folks, providin’ yuh had any, which I doubt. I don’t want to git personal none, but I will observe somethin’ in this room smells an’ it comes from yore side o’ the table!”

Forthwith a Big Elk stalwart rose to his feet. "The atmosphere is some tainted all right. But the breeze is blowin' from yore direction. Jingle Bell has been dead thirty years—an' it ain't been buried yet."

Chairs flew back; up rose the assembled gentlemen. Indigo sighed and shrugged his thin shoulders. "Jes' a minute," pleaded Joe. "They's a mistake _____"

"You bet they's a mistake!" bellowed Phil Layton. "The mistake is tryin' to get sixteen mutton lovers to eat beef! I ain't a proud man, but my ears shore do burn to think what a disgraceful night this is for me."

"Nothin' ever comes from Jingle Bell but dust," jeered another Big Elk partisan. "Dust an' hot air!"

"Yeh? Well, they's plenty o' Big Elk boys that's proud o' Jingle Bell when yore tinhorn sheriff gets busy."

"Aw, go home to yore cemetery!"

"Cemetery? I'm sayin' Big Elk's cemetery will do some business before this meetin's adjourned!"

"Yeh?"

"Yeah!"

"Yuh lie!"

"Who lies—yuh liar!"

Up rose the long table, borne by thirty-odd pairs of contesting arms; up and over with a rending and a crashing of dishes. Down went the lamps. The spilling kerosene flamed a bright blue, reared and whipped out. In the darkness words were flailing back and forth across the table and then a moment of deceptive silence descended, in which Indigo could be heard muttering, "Awful. Somebody's goin' to get hurt yet. I wish I'd held on to that dish o' hominy."

He said something else, but it was lost in the roar of a gun. That shot was a signal. Instantly the place was aquiver with the blasting report of guns as sundry unarmed men discovered weapons from queer sources. A torrent of poisonous epithets, rocketing yells—and the Three Pines ranch-house shivered with the shock of bodies hurling toward the exit. Window panes jingled and the firing dropped off. Some thirty men had arrived at the

doorway about the same time; and the grunting and the heaving—with all its by-products—was something fearful to hear. It seemed as if the whole wall was about to burst asunder. From the outside came the crackling of other guns in other hands, appearing to rise out of two distinct places, the corrals and the poplars. And it continued until the contending factions had fought out of the door. Hoofs drummed around and around the house, there were other bludgeoning words and a further spattering of bullets as the two parties withdrew and raced in opposite directions. Silence reigned in the house.

But not for long. After a decent interval someone swore placidly. A match flared, revealing Indigo's gloomy countenance down behind a pile of chairs. And from an opposite corner rose the familiar drawl of Joe Breedlove. "Well, Indigo."

"Well, Joe."

One of the Three Pines women ventured in, bearing a lamp. The yellow rays gleamed on utter ruin. More than that, they gleamed on a pocket pistol in Indigo's fist. Joe challenged him then and there. "Didn't you know this was to be an affair o' peace, Indigo?"

"Uhuh," said Indigo, a little sheepishly. "But, you see, I wouldn't of had it, if it'd been a peaceful affair."

This reasoning seemed to be both devious and open to certain errors of logic. But Joe let it pass. "Let's smoke," said he.

"I wish I'd kept aholt of that bowl o' hominy," grieved Indigo.

"You got any further business in Jingle Bell, Indigo?"

"No, sir. I'm a singed cat an' I got to grow my whiskers before I go smellin' any more trouble."

"That's my identic idee," said Joe, casually. "I think you'n me had better get our hosses an' sift."

"Where to, Joe?"

"South."

"It sounds reasonable," muttered Indigo. They rose and went outside. Starlight had come and the bosom of the prairie was filled with peace. "Human nature," said Joe Breedlove, sadly, "is plumb immutable."

“I could say it in shorter words,” replied Indigo, “but they couldn’t sound no worse. Le’s ride.”

Transcriber’s note: This story appeared in the May 10, 1928 issue of *Short Stories* magazine.

*** END OF THE PROJECT GUTENBERG EBOOK A MUNICIPAL
FEUD ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual

work is unprotected by copyright law in the United States and you are located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in

the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of

exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, “Information about donations to the Project Gutenberg Literary Archive Foundation.”
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.

- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b)

alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up

to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.